



File No.: EXP202300885

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 12, 2021, the Director of the Spanish Agency for Data Protection issued a resolution in the procedure for the exercise of rights number TD/00045/2021, followed against TRC TRUCKS 2020, S.L. (hereinafter, the respondent).

The resolution states that the following fact has been verified:

“FIRST: The complainant exercised the right of Erasure against the respondent, without their request receiving the legally established response.

The complainant provides various documentation related to the complaint filed with this Agency and regarding the exercise of the right exercised.”

Furthermore, in the operative part of the aforementioned resolution, the following was required:

“FIRST: TO GRANT the complaint filed by A.A.A. and to urge TRC TRUCKS 2020, S.L., with NIF B56085038, to send the complainant a certification addressing the exercised right of Erasure within ten working days following the notification of this resolution, or to deny it with justification indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.”

SECOND: The electronic notification of the resolution was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), not being collected by the responsible party within the period for availability and being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on April 23, 2021, as stated in the certificate included in the file.

THIRD: On March 16 and October 6, 2022, with entry registration numbers REGAGE22e00007288857 and REGAGE22e00044486675 respectively, the complainant informed this Agency that the respondent had not complied with the resolution. Therefore, on April 7 and October 10, 2022, the respondent was required to send the complainant a certification of compliance with the referenced resolution in the terms described therein within five working days, and to notify this Agency of the measures adopted within ten working days.

The first of these requirements was returned to sender by Correos on April 29, 2022, as it was not collected at the office after two failed delivery attempts, while the second was sent by electronic notification and was not collected by the responsible party within the availability period, thus being understood as rejected on October 21, 2022, as stated in the acknowledgments of receipt included in the file.

FOURTH: Although the notification of the resolution of the rights exercise procedure was validly carried out by electronic means in accordance with the provisions of Articles 41 and 43 of the LPACAP, for informational purposes, a copy was sent by postal mail which was ultimately notified reliably on November 28, 2022, as evidenced in the file.

FIFTH: After the expiration of the granted period without any written communication regarding compliance with the resolution being received by this Agency, the respondent was required again. This requirement was returned to sender by Correos on January 19, 2023, as it was not collected at the office after two failed delivery attempts, as stated in the acknowledgment of receipt included in the file.

SIXTH: To date, the respondent has not sent any response to this Agency that proves compliance with the resolution of the rights exercise file number TD/00045/2021.

SEVENTH: No ordinary administrative appeal can be filed against the aforementioned resolution due

to the expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

EIGHTH: According to the report obtained from the AXESOR tool, the entity TRC TRUCKS 2020, S.L. is a company established in 2017 that has never filed Annual Accounts and has estimated sales of 447,579 euros.

NINTH: On February 6, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR. After two unsuccessful attempts to deliver the postal notification of the initiation agreement, in accordance with the provisions of Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the notification was made by means of an announcement published in the Official State Gazette dated March 8, 2023.

TENTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

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Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the agreement to open the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement about the responsibility attributed, it may be considered a proposal for resolution. In the present case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, taking into account that the respondent has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered, in this case, a proposal for resolution.

In view of all the actions taken, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

PROVEN FACTS

FIRST: The resolution of the procedure for exercising rights and the requirements for its compliance indicated in the first, third, and fifth recitals were notified in accordance with the provisions of the LPACAP. This resolution became final and enforceable due to the passage of the deadlines established for the filing of the appeals indicated therein.

SECOND: In the aforementioned resolution, the respondent is ordered to send the claimant a certification addressing the exercised right of Erasure or to deny it with justification, indicating the reasons why the request cannot be granted, as well as to communicate the actions taken to this Agency.

THIRD: The respondent has not sent any response to this Agency that proves compliance with the aforementioned resolution.

FOURTH: The initiation agreement of the present sanctioning procedure was notified to the respondent, in accordance with the provisions of Article 44 of the LPACAP, by means of an announcement published in the Official State Gazette dated March 8, 2023, after two unsuccessful delivery attempts at the postal address.

FIFTH: The respondent has not submitted allegations to the initiation agreement of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached

In accordance with the evidence available, it is considered that the respondent has breached the resolution of the Spanish Agency for Data Protection.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the respondent, for violation of Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period;"

III

Classification and qualification of the infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher."

For the purposes of the limitation period for infringements, the infringement attributed is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) The failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Imposed sanction

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The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

It is noted that no mitigating or aggravating circumstances apply.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR as classified in Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of €1,000.00 (ONE THOUSAND euros).

V

Adoption of measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to align

its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on TRC TRUCKS 2020, S.L., with NIF B56085038, for an infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of €1,000.00 (ONE THOUSAND euros).

SECOND: TO REQUIRE TRC TRUCKS 2020, S.L., with NIF B56085038, to provide proof of compliance with the resolution of the rights exercise procedure of file number TD/00045/2021 within ten business days from the notification of this Resolution to this agency.

THIRD: TO NOTIFY this resolution to TRC TRUCKS 2020, S.L.

FOURTH: TO WARN the sanctioned party that the imposed sanction must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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